



POLICE DEPARTMENT CITY OF NEW YORK

March 2, 2017

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jason Santana
Tax Registry No. 939417
Highway Unit No. 5
Disciplinary Case No. 2015-14812

Charges and Specifications:

1. Said Police Officer JASON SANTANA, on or about June 26, 2015, at approximately 1608 hours, while assigned to the 72nd Precinct and on duty in the vicinity of [REDACTED] Kings County, was engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he stopped a vehicle operated by Person A without sufficient legal authority. (*As Amended*)
P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED CONDUCT
2. Said Police Officer JASON SANTANA, on or about June 26, 2015, at approximately 1608 hours while assigned to the 72nd Precinct and on duty in the vicinity of [REDACTED] Kings County, was discourteous to Person A in that he pushed his chest against Person A's body.
P.G. 203-09, Page 1, Paragraph 2 - DISCOURTESY

Appearances:

For CCRB-APU: Amanda Gayle, Esq. & Raasheja Page, Esq.
Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

For the Respondent: John Tynan, Esq.
Worth, Longworth & London, LLP
111 John Street – Suite 640
New York, NY 10038

Hearing Date:

December 19, 2016

Decision:

Not Guilty

Trial Commissioner:

ADCT Paul M. Gamble

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 19, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. CCRB called Julissa Grullon as a witness. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Not Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

The following is a summary of the facts which are not in dispute. On June 26, 2015, Respondent was on duty in the 72nd Precinct operating a summons vehicle (T. 67). At approximately 1600 hours, in the vicinity of 53rd Street and Fifth Avenue, Kings County, he observed Person A driving a white Honda sedan with [REDACTED] registration. At that hour, Fifth Avenue is a busy thoroughfare with standard vehicular traffic as well as New York City bus traffic (T. 74-75). The northbound and southbound lanes are divided by double solid yellow lines (T. 75). Respondent further observed that the rear window of the vehicle was tinted and that the rear license plate cover appeared to obscure the identifiers on the license plate (T. 69-70). Respondent, activating his loudspeaker, directed Person A to pull over and roll down his windows (T. 71). Respondent eventually left his vehicle and walked over to Person A's driver

door. Respondent asked Person A for his license, registration and insurance card (*Id.*). Respondent returned to his vehicle and retrieved a light meter, which he placed on Person A's window. After testing the tint on Person A's window, Respondent drafted two summonses, one for excessive tint of his windows and one for an obscured license plate (T. 72-73). Respondent issued the summonses to Person A, then returned to his vehicle. During the stop, Person A had a passenger with him, Person B (T. 73-74).

Person A drove away from the scene in a manner which is in dispute. Respondent followed Person A in his police vehicle to 5 [REDACTED], between [REDACTED] (T. 75). Person A double-parked his car and stepped out into the street (T. 43-44). Respondent ordered Person A back into his car but Person A proceeded to walk onto the sidewalk toward [REDACTED]. [REDACTED] Julissa Grullon was present in the front of that location, along with Person A's minor child and others (T. 26-29, 76-78).

Person A and Respondent had a verbal exchange, the particulars of which are in dispute. At the end of the exchange, Respondent left the scene without issuing any additional summonses.

At issue is whether Respondent stopped Person A in the vicinity of [REDACTED], the second stop, without sufficient legal authority. Also at issue is whether Respondent was discourteous toward Person A in that he pushed his chest against Person A's body.

The following is a summary of the facts which are in issue. Person A made two statements to CCRB which were admitted into evidence (CCRB Ex. 1, 2, 2-B). In a June 26, 2015, recorded telephone conversation, Person A stated that he was stopped at a red light when he observed Respondent pull up behind him in a police car. According to Person A, Respondent pulled the police car around so that he was beside his car, then pulled back behind the car. Shortly thereafter, Respondent turned on his police lights and pulled Person A over. Respondent

approached the car and asked for license, registration and insurance card in what Person A characterized as a rude manner. Person A provided the documents to Respondent, then asked him why he was being pulled over. Respondent allegedly told Person A that he would inform him once he figured it out (CCRB Ex. 1, pp. 3-8; CCRB Ex. 2, p. 5).

Respondent commented to Person A that his windows were all down and directed him to roll them up. When Person A questioned why he should roll the windows up, Respondent informed him that he was going to issue him a summons for overly tinted windows. Person A argued that Respondent could not give him a summons if all his windows were already down. According to Person A, Respondent also told him that he was receiving a summons for an obscured license plate cover. Respondent returned to his police car, then walked back and forth behind Person A's car. Respondent issued Person A two summonses, then walked back to his police car (CCRB Ex. 2, pp. 5-6).

Person A drove away from the location to the area of [REDACTED], where he intended to pick up his son from his babysitter, Julissa Grullon. According to Person A, Respondent "tailgated" him in his police car until he stopped at [REDACTED] (CCRB Ex. 2, p. 6). Respondent waited for Person A to park, then turned on his police lights and, as Person A was leaving his car, told him to get back inside. According to Person A, Respondent stepped out of his police car, walked onto the sidewalk in front of [REDACTED] and pressed his chest up against Person A's shoulder (CCRB Ex. 1, pp. 9-10; CCRB Ex. 2, pp. 6-7). Person A claimed that many people took out mobile phones and began recording the interaction (CCRB Ex. 2, p. 8). Person A claimed that during this interaction, Respondent had his hand on his belt and his holster unbuckled (*Id.*). Person A stated that Respondent told him that he would stop Person A every time he saw him (CCRB Ex. 1, p. 11; CCRB Ex. 2, p. 9).

Person A told Respondent that he was going to file a complaint against him and returned to his car, before driving to the 72nd Precinct (CCRB Ex. 1, p. 10; CCRB Ex. 2, p. 8). When Person A arrived at the 72nd Precinct, he observed Respondent sitting in front of the building looking at him. Person A claimed that he could not enter the 72nd Precinct because he was afraid of Respondent (CCRB Ex. 1, p. 11).

In his July 2, 2015, statement, Person A essentially repeated the factual assertions he made in his June 26th telephone call but also asserted that he eventually entered the 72nd Precinct on June 26th in order to make a complaint against Respondent. According to Person A, the desk officer said that he could not do much; that there were already "a thousand complaints" against Respondent; and that he should call the CCRB telephone number (CCRB Ex. 2, pp. 13-14). Person A further asserted that he and Respondent have had numerous interactions, which led to Respondent issuing him summonses on at least eight occasions, each of which Person A asserted were dismissed in court (CCRB Ex. 2, pp. 15-16).

Person B made a statement to CCRB on August 6, 2015 (CCRB Ex. 3-B). In this statement, person B asserted that he had been cutting Person A's hair prior to the incident in question (CCRB Ex. 3-B, p. 3). Person A was giving person B a ride to a fast food restaurant to pick up his lunch when they were stopped by Respondent (CCRB Ex. 3-B, pp. 3-4). person B stated that the windows in Person A's car were all down because of the mild weather (CCRB Ex. 3-B, p. 3). According to Person B, Respondent turned on the lights of his police car and directed Person A to pull over. Once Person A had stopped his car, Respondent further directed him to roll down his windows. When Respondent asked Person A for his registration, he protested, asking why he had been stopped (CCRB Ex. 3-B, p. 4). Respondent turned to Person B and asked him if he was a good friend of Person A, to which he responded that he was. Respondent then told Person B to "Tell

your friend I'm a good guy; he doesn't want to see my bad side" (CCRB Ex. 3-B, p. 5).

Respondent told Person A to step out of his car, telling him he was going to show him why he had stopped him. Person A and Respondent walked to the back of the car, out of Person B's sight, then Person A re-entered his car (*Id.*). Respondent returned thereafter with a meter to place on the car window so that he could measure the window tint. While Respondent was examining the car windows, Person A was looking for documents he had requested. According to Person B, Respondent had returned to his police car at some point and called out to Person A over the loudspeaker, saying he had better find the documents (CCRB Ex. 3-B, p. 6). While Person B conceded in his statement that Person A did have tinted windows on his vehicle, he also questioned why Respondent asked Person A to roll the windows up (CCRB Ex. 3-B, pp. 6-7, 9). Person B further asserted in his statement that they were simply driving slowly on Fifth Avenue when they were pulled over.

Person B was permitted to leave Person A's car and went to a fast food restaurant to buy lunch. On his way back to the barber shop, Person B saw Person A parked in the same place, still being detained by Respondent. Person B observed that by the time he returned to Person A's car, another police car had arrived on the scene. He spoke briefly to Person A, then left the area CCRB Ex. 3-B, pp. 6, 13-14). Person B was not present during the confrontation between Respondent and Person A in front of [REDACTED]

Julissa Grullon testified that she is the godmother of Person A's son (T. 25). On June 26, 2015, she was sitting on the stoop in front of her home at [REDACTED] when she observed Person A drive up, followed by Respondent in a police car (T. 27-28). The parties stipulated that Grullon's stoop was 8-10 feet from the street (T. 40). Grullon heard music coming from Person A's car but denied that it was loud, quantifying the volume as a 4 out of 10 (T. 28).

Grullon saw Person A exit his car and walk toward her, followed by Respondent, who had also exited his police car (T. 28-29). Respondent followed Person A to Grullon's stoop, where he stopped (T. 31). According to Grullon, Respondent was standing close enough to Person A that Respondent's chest was touching Person A's shoulder (*Id.*). Respondent and Person A were shouting at each other and exchanging foul language (T. 32). Grullon recalled Person A stating that he was going to file a police report, then walking back to his car before driving away (T. 33). Respondent then returned to his police car and also drove away.

Grullon conceded on cross-examination that she was aware that Person A had served time in state prison for attempted robbery (T. 35). Grullon stated that the argument between Respondent and Person A lasted for approximately five minutes but could not recall what they said to each other, other than that Respondent said, "What the fuck is going on?" (T. 49-50, 53-54, 55). Grullon did not attempt to record the argument despite having an iPhone in her possession (T. 54).

Respondent testified that on June 26, 2015, he was on duty in the 72nd Precinct operating a summons auto. At approximately 1600 hours, in the vicinity of Fifth Avenue and 53rd Street, he observed Person A operating a vehicle with a license plate cover which obscured the name of the issuing state (T. 69). Respondent activated his police lights and pulled the vehicle over (T. 70). As Respondent approached the stopped vehicle, he observed further that the windows were extremely dark (*Id.*). Before leaving his police car, Respondent, using his loudspeaker, directed Person A to lower his windows (T. 71). Respondent made the same request several times before Person A lowered the windows; once he did so, Respondent observed Person A flailing his arms and yelling (*Id.*). Respondent left his police car, walked up to the driver's window and asked Person A for his license, registration and insurance card (*Id.*). Once Respondent received the

requested documents, he asked Person A to roll up one of his windows so he could measure the percentage of tint (T. 72). Person A initially protested but eventually acquiesced and rolled up one window (*Id.*). Respondent tested the window tint using a meter and concluded that the degree of tint on the windows was illegal (T. 72-73). Respondent returned to his police car and prepared two summonses, which took approximately ten minutes (T. 73). Respondent prepared an entry in his activity log, then handed the summonses to Person A (*Id.*). Respondent estimated that the entire enforcement action took approximately 13-14 minutes (T. 74).

During the car stop, Respondent permitted Person B, who was seated in the front passenger seat, to leave Person A's vehicle and purchase lunch (*Id.*). Person B returned to Person A's vehicle before the car stop concluded, had a brief conversation with Person A, then left the area (*Id.*).

Once Person A accepted the summonses from Respondent, Respondent walked back to his police car. As Respondent walked to his vehicle, he could hear Person A turning the volume up on his speakers, eventually raising the volume after Respondent got back into his police car to the point where Respondent determined it was excessive (T. 75). Person A then drove northbound on Fifth Avenue, accelerating from the stop at an excessive rate of speed (*Id.*). Respondent made the decision to stop Person A again and followed him for two to three blocks to the area of [REDACTED] while activating his police lights for the second time (T. 75-76). Person A stopped his car between [REDACTED] and stepped out (T. 77). Respondent directed Person A to return to his car but he ignored the command (*Id.*). Respondent stated that Person A made eye contact with him but proceeded to walk to the sidewalk where he began speaking to a group of people (T. 77-78). As Respondent approached him and repeated his direction to return to his vehicle, Person A said, "Don't touch me" (T. 78). At the time Person A made the

aforementioned statement, Respondent was not yet within arm's reach of Person A's person (*Id.*). Respondent observed that Grullon and several children were seated nearby on a stoop (T. 79). Person A began shouting and cursing, saying "I'll make sure you don't get promoted; I do what I want" (*Id.*). Respondent elected to issue Person A a warning about his window tints, license plate cover and the volume of his music, then left the area (T. 79-80).

The decisions of Person A and Person B not to appear for trial denied the tribunal an opportunity to scrutinize under oath their position that Respondent's otherwise unremarkable actions in issuing summonses were actually a vindictive abuse of his authority.

I do not credit Person A's statements because they are unreliable, embellished and self-serving. First, as hearsay statements, they are less probative than testimony made under oath which is subject to cross-examination. Second, Person A complained in his June 26, 2015, statement that he was too afraid to enter the 72nd Precinct that day and could not mediate his complaint against Respondent because he feared for his life. These self-serving assertions are incredible under the circumstances and further undermine his credibility. Person A's professed fear is belied by his admission that, shortly after calling 311, he went into the 72nd Precinct to make a complaint against Respondent. Person A's claim that Respondent unfairly targeted him because he was "never in the neighborhood" is inconsistent with his assertion that Respondent issued him traffic citations on at least eight occasions. Furthermore, the assertion is illogical and unsupported by the credible evidence in the record. Finally, I view Person A's prior felony conviction as a significant factor weighing against his veracity.

While Respondent denied having any previous interactions with Person A, the fact of previous encounters would not negate the uncontested evidence that on the date in question, Person A was operating a vehicle with overly-tinted windows. Similarly, Person A and Person B's

insistence that the windows were down does not refute Respondent's testimony that the windows were tinted. [REDACTED]'s statement that Respondent allowed Person A to step to the rear of his vehicle to show him why he stopped him supports Respondent's testimony that he observed a tinted rear window on Person A vehicle, which would lead an objective observer to infer that the other windows were tinted as well. Furthermore, Person A and Person B apparently misunderstood the prohibition against overly tinted windows: their statements suggest that they believed Person A could not be cited for the traffic infraction if his windows were down at the time he encountered Respondent.

The manner in which Person A described his interaction with Respondent during the first stop makes it more likely than not that during the second stop Person A behaved in a similar manner. By his own admission, Person A was argumentative and attempted to challenge Respondent's justification for issuing him a summons for windows which Person A knew were tinted. Furthermore, Person A's self-described combative demeanor tends to corroborate Respondent's testimony that Person A turned his music up and drove away at high speed.

I find Grullon's testimony unreliable due to her inability to recall material portions of the interaction between Person A and Respondent which occurred in her presence; her relationship with Person A; and her apparent attempt at minimization of his behavior.

In contrast, Respondent's testimony was forthright, plausible and consistent with the credible evidence in the record. His description of his observations leading up to the issuance of summonses comports with common sense and the law. Respondent's further description of the events leading up to his second encounter with Person A similarly are concise and logical, rather than exaggerated. Respondent's decision to forbear from issuing a second summons based upon

his assessment that the situation in front of [REDACTED] was degenerating with the potential for diminishing the public perception of this Department imbues his testimony with the ring of truth.

I further find that Respondent had ample justification to stop Person A for a second time for creating a hazardous condition which served no legitimate purpose, based upon his driving away from the first traffic stop at a high rate of speed (Penal Law § 240.20[7]). Finally, I find that Respondent did not make physical contact with Person A in a discourteous manner during the confrontation in front of [REDACTED].

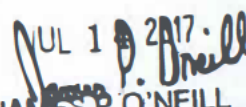
Accordingly, based upon the relevant credible evidence in the record, I find that CCRB has failed to meet its burden of proof by a preponderance of the credible, relevant evidence. therefore find Respondent ot Guilty.

Respectfully submitted,



Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

JUL 14 2017

JAMES P. O'NEILL
POLICE COMMISSIONER